

Regulatory_Compliance_Overview

Compliance Guide

保险公司 技术开发部
内部文档 · 仅供授权人员查阅

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Insurance Regulatory Compliance Overview

1. Overview

This document provides a regulatory compliance overview for the insurance technology department, mapping key laws and regulatory requirements applicable to insurance technology. References include the National Financial Regulatory Administration (NFRA), People's Bank of China (PBOC), and related regulators.

2. Regulatory Framework

2.1 China Insurance Regulatory Structure

National Financial Regulatory Admin (NFRA) Unified financial supervision (insurance)
People's Bank of China (PBOC) Payment settlement, AML, credit reporting
China Securities Regulatory Commission Insurance fund investments
China Insurance Association Industry self-regulation, service rating

2.2 Key Regulations

Regulation	Effective	Scope
Insurance Law of PRC	2021 amendment	All insurance business
Internet Insurance Regulation	Feb 2021	Online insurance
C-ROSS Phase II	2022	Solvency management
PIPL	Nov 2021	Personal information
Data Security Law	Sep 2021	Data processing
Cybersecurity Law	Jun 2017	Network security
MLPS 2.0	Dec 2019	Information security
Financial Data Security Classification	2020	Financial data grading

3. Compliance Organization

Role	Responsibilities	Tech Liaison
Compliance Committee	Strategy, major approvals	Compliance assessment reports

Role	Responsibilities	Tech Liaison
Compliance Dept	Daily management, regulatory liaison	Review support, remediation
Legal Dept	Contract review, legal risk	System legal support
DPO	PIPL oversight	Data security tech review
IS Committee	Security strategy, incident response	Security architecture & ops

4. Technology Compliance Points

4.1 Product Compliance

- Rates and clauses require actuarial and compliance approval
- Internet insurance products must be registered with regulator
- Application process must meet suitability management requirements

4.2 Data Compliance

- Personal info collection requires "notice-consent"
- Sensitive personal info requires separate consent
- Data export requires security assessment
- Policy data retention: ≥ 10 years after policy expiry

4.3 Channel Compliance

- Third-party platforms require insurance intermediary qualification
- Online sales must be traceable
- Auto-enrollment requires customer notification

4.4 Claims Compliance

- Claim assessment: within 30 days of complete materials
- Rejection requires written explanation
- Fast-track small claims: settlement within 24 hours

5. Regulatory Penalty Risks

Violation	Example	Basis	Penalty
Data breach	Unauthorized access to customer data	Insurance Law Art. 116	Fine + suspension
Misleading sales	Exaggerated coverage/returns	Insurance Law Art. 162	Fine 200K-1M
Improper rejection	No explanation for denial	Insurance Law Art. 23	Fine + admin sanction
PIPL violation	Unconsented collection	PIPL Art. 66	Fine up to 50M/5% revenue

6. RegTech Applications

RegTech	Technology	Application
Digital Regulatory Rules	DRL Engine	Auto compliance check for UW rules
Intelligent Compliance	NLP	Auto review of sales scripts
Data Security Audit	Big Data + UEBA	Real-time anomalous access alerts
Automated Reporting	ETL + Data Lineage	Auto regulatory filing
Sales Traceability	Screen recording + Blockchain	Internet insurance process recording